

1 WILL ACCEPT SO SHE CAN BE RELEASED, AND THEN SIT DOWN AND MAKE
2 THAT TYPE OF AGREEMENT WITH HER.

3 AND THAT'S WHAT WE EXPECT TO HAPPEN, BUT WE HAVEN'T DONE
4 IT YET BECAUSE WE'VE JUST GOT INVOLVED RECENTLY, WE'VE BEEN
5 VERY FOCUSSED ON TRYING TO GET HER OUT SO THAT WE CAN HAVE THAT
6 DISCUSSION.

7 THE COURT: WELL, I --

8 MR. PETERS: YOUR HONOR KNOWS THAT IT ISN'T JUST
9 LIKE -- REPRESENTING A PERSON IN A CASE THAT'S COMPLEX LIKE
10 THIS ISN'T JUST LIKE GOING AND --

11 THE COURT: NO.

12 MR. PETERS: I REALLY WANT TO SIT DOWN AND BE ABLE TO
13 HAVE A CONFIDENTIAL CLIENT-ATTORNEY CONVERSATION WITH HER ABOUT
14 THE CASE AND REPRESENTING HER, AND I'M HOPING TO DO THAT IN MY
15 OFFICE, NOT IN A LITTLE ROOM AT SANTA RITA.

16 THE COURT: YEAH, BUT I WOULD SAY THAT -- I CAN'T
17 GIVE YOU AN ASSURANCE ONE WAY OR THE OTHER.

18 MR. PETERS: I UNDERSTAND.

19 THE COURT: AS OF NOW, SHE'S IN CUSTODY. AS OF NOW,
20 I BELIEVE THAT THE GOVERNMENT HAS ESTABLISHED THAT SHE IS A
21 SIGNIFICANT FLIGHT RISK.

22 THAT CAN CHANGE DEPENDING ON WHAT YOU PRESENT TO ME, AND
23 IT'S SORT OF IN YOUR HANDS.

24 BUT, AGAIN, I'LL GO BACK TO THE FACT THAT -- WELL, LISTEN,
25 MAYBE YOU CAN'T MAKE A DECISION RIGHT NOW. I MEAN, YOU --

1 THAT'S PERFECTLY UNDERSTANDABLE.

2 MR. PETERS: MAKE A DECISION ABOUT?

3 THE COURT: MAKE A DECISION AS TO A TRIAL DATE OR
4 SOMETHING ALONG THAT LINE. MAYBE YOU CAN'T DO IT NOW. YOU'RE
5 JUST NOT --

6 MR. PETERS: I'M SORRY, YOUR HONOR.

7 THE COURT: YOU'RE NOT INFORMED.

8 MR. PETERS: I'D REALLY LIKE TO STAY FOCUSSED ON
9 BAIL. I'D LIKE TO SEE IF WE CAN ADDRESS YOUR HONOR'S
10 CONCERNS --

11 THE COURT: OKAY.

12 MR. PETERS: -- AND COME BACK AS SOON AS POSSIBLE
13 WITH A PACKAGE THAT IS ALONG THE LINES OF WHAT WE'VE BEEN
14 DISCUSSING AND SEE IF WE CAN MAKE THAT WORK.

15 THE COURT: WELL, I CAN SEE YOU NEXT WEEK TOWARDS THE
16 END OF THE WEEK, OR I COULD SEE YOU THE FOLLOWING WEEK. WHAT
17 DO YOU WANT TO DO?

18 MR. PETERS: SHOULD -- I MEAN, SHOULD WE SET ANOTHER
19 TIME? I --

20 THE COURT: WELL, OR WE CAN NOT SET A TIME --

21 MR. PETERS: NO, I'D LIKE TO SET A TIME.

22 THE COURT: -- AND HAVE YOU COME BACK WHEN YOU'RE
23 READY.

24 (DISCUSSION OFF THE RECORD BETWEEN DEFENSE COUNSEL.

25 MR. PETERS: SHOULD WE JUST CONTACT YOUR HONOR'S

1 COURTROOM DEPUTY?

2 THE COURT: YEAH, WHY DON'T YOU DO THAT? I'M -- I
3 THINK I NEED TO -- I THINK I NEED TO MAKE FINDINGS WITH RESPECT
4 TO DETENTION BASED UPON THE RECORD AS IT PRESENTLY EXISTS.

5 I'LL ASK THE GOVERNMENT TO PREPARE FINDINGS IN THAT REGARD
6 CONSISTENT WITH WHAT I'VE SAID AND CONSISTENT WITH WHAT THE
7 EVIDENCE IS THAT HAS BEEN PRODUCED.

8 MR. FOSTER: YES, YOUR HONOR.

9 THE COURT: NOW, SUBJECT TO -- SO IF, IN FACT, YOU
10 THINK AT THIS POINT YOU'RE -- AT THIS POINT, SHE SHOULD HAVE
11 BEEN RELEASED -- WELL, OF COURSE, WE HAVEN'T TALKED ABOUT
12 CONDITIONS. BUT AS OF NOW, I'M UNAWARE OF CONDITIONS THAT
13 WOULD BE SATISFACTORY BECAUSE NONE HAVE BEEN PROPOSED.

14 MR. PETERS: YOUR HONOR, WHAT I WOULD ANTICIPATE
15 DOING, IF WE CAN WORK IT OUT, IS TO PROPOSE THE KIND OF
16 CONDITIONS AND ARRANGEMENT THAT YOU'VE JUST DESCRIBED, ALONG
17 WITH WHAT WE'VE ALREADY PROPOSED, AND PRESENT THAT TO THE
18 COURT.

19 BUT I -- THAT'S GOING TO TAKE ME A COUPLE OF DAYS TO PUT
20 THAT TOGETHER.

21 THE COURT: WELL, SURE. I DON'T QUITE KNOW HOW TO
22 PROCEED. IT SEEMS TO ME THAT I -- I SHOULD ISSUE AN ORDER WITH
23 RESPECT TO WHETHER SHE CONSTITUTES A FLIGHT RISK.

24 MR. PETERS: OR HOLD THE HEARING OPEN UNTIL NEXT
25 WEEK.

1 THE COURT: AND TO SAY, AFTER FINDING THAT AND
2 CONSISTENT WITH IT, THE COURT WILL CONSIDER PROPOSALS TO
3 MITIGATE AGAINST THIS FLIGHT RISK SHOULD SOME BE PRESENTED TO
4 IT, AND LEAVE IT UP TO YOU AS TO WHEN YOU WANT TO RESOLVE IT.

5 I WILL NOT BE HERE MONDAY, TUESDAY, OR WEDNESDAY OF NEXT
6 WEEK?

7 MR. PETERS: YOU WILL NOT?

8 THE COURT: I WILL NOT.

9 MR. PETERS: SO CAN WE PUT IT ON THEN FOR THURSDAY OR
10 FRIDAY OF NEXT WEEK?

11 THE COURT: SURE.

12 MR. PETERS: AND I THINK BY THEN WE WILL HAVE OUR
13 DUCKS IN A ROW.

14 I JUST DON'T WANT TO BE FORECLOSED FROM COMING BACK.

15 THE COURT: YOU'RE NOT FORECLOSED.

16 MR. PETERS: THANK YOU.

17 THE COURT: AS A MATTER OF FACT, IN BAIL HEARINGS, I
18 DON'T THINK YOU'RE EVER FORECLOSED.

19 MR. PETERS: WELL, THE GOVERNMENT HAS ARGUED A COUPLE
20 TIMES THAT WE WERE. I THINK THAT YOUR HONOR ALWAYS HAS THE
21 AUTHORITY TO MODIFY THE CONDITIONS UP OR DOWN.

22 THE COURT: I HAD SOME -- WELL, WE'RE NOT IN THE
23 DISTRICT OF NEVADA WHERE APPARENTLY THAT SEEMS TO BE --

24 MR. PETERS: WE WERE HERE THE OTHER DAY, YOUR HONOR.

25 THE COURT: -- THAT SEEMS TO BE -- I DON'T KNOW WHERE

1 THEY GOT THAT IDEA.

2 I WOULD ALWAYS CONSIDER ANY -- YOU KNOW, I THINK YOU
3 ALWAYS HAVE TO CONSIDER IT, FOR A VARIETY OF REASONS.

4 ANYWAY, OKAY.

5 MR. PETERS: THE TIME NEXT WEEK?

6 THE COURT: FRIDAY? WHAT DO YOU WANT TO DO?

7 THE CLERK: THURSDAY, AUGUST -- THURSDAY, AUGUST 29TH
8 AT 11:00 A.M.

9 MR. FOSTER: I SERVE AT THE COURT'S PLEASURE. IT IS
10 MY BIRTHDAY THAT DAY, SO --

11 THE COURT: YOUR BIRTHDAY?

12 MR. FOSTER: YES.

13 MR. PETERS: WHAT A WONDERFUL DAY TO BE HERE IN
14 SAN FRANCISCO. YOUR PARENTS ARE IN BERKELEY. THEY'LL BE
15 HAPPY.

16 THE COURT: WHAT A WONDERFUL WAY TO SPEND A BIRTHDAY.
17 IF YOU WANT TO APPEAR BY ZOOM, YOU CAN. AND ALSO, YOU
18 HAVE VERY, VERY COMPETENT LOCAL -- YOU KNOW, YOUR -- THE LOCAL
19 U.S. ATTORNEY'S OFFICE.

20 MR. FOSTER: OF COURSE, YOUR HONOR.

21 THE COURT: THEY ARE HIGHLY COMPETENT, AND SHE CAN
22 APPEAR AS WELL.

23 SO YOU WORK OUT HOW YOU WANT TO DO IT.

24 MR. FOSTER: SURE.

25 THE COURT: I DON'T -- I TAKE NO INFERENCE BY -- IF

1 YOU'RE NOT HERE, THAT DOESN'T MEAN YOU'RE NOT AS INTERESTED IN
2 IT AS YOU WOULD BE IF YOU WERE HERE. SO THOSE THINGS DON'T --
3 LAWYERS ARE VERY, VERY BUSY. LAWYERS OUGHT TO HAVE A LIFE
4 INDEPENDENT OF BEING A LAWYER.

5 MR. PETERS: THAT'S A WONDERFUL ASPIRATION, YOUR
6 HONOR. I'VE BEEN WORKING ON IT NOW FOR ABOUT, ALMOST 40 YEARS.
7 LET ME SEE IF I CAN GET THERE.

8 THE COURT: TOO ASPIRATIONAL.

9 MR. PETERS: WHAT WE WILL DO, YOUR HONOR, IS IF WE
10 CAN COME UP WITH AN ARRANGEMENT THAT WE THINK MAY MEET WITH
11 YOUR HONOR'S APPROVAL, I THINK WE'LL SUBMIT A PROPOSED ORDER,
12 WITH A COPY TO THE GOVERNMENT, AND THEY'LL PROBABLY OBJECT AND
13 THEN WE'LL COME BEFORE YOUR HONOR TO DISCUSS IT.

14 BUT IT'S LIKELY TO INVOLVE THE KIND OF MONITORING THAT WE
15 DISCUSSED IF WE CAN GET THAT IN PLACE FROM A REPUTABLE,
16 INDEPENDENT COMPANY.

17 THE COURT: WELL, MONITORING IS ONE THING, AND THE
18 OTHER THING IS ACCESS TO FUNDS, ACCESS TO FUNDS. FUNDS.
19 MONEY. MONEY.

20 MR. PETERS: WELL --

21 THE COURT: BECAUSE THE, THE FUNDS PRESENT A REAL
22 PROBLEM IN THE COURT'S VIEW.

23 MR. PETERS: IN YOUR MIND -- IN THE --

24 THE COURT: OF COURSE I DID -- YOU CAN SAY WITH
25 DR. LYNCH, OF COURSE, HE HAD UNLIMITED FUNDS.

1 BUT, AGAIN, THE DIFFERENCE BEING, BETWEEN THE TWO, IS THAT
2 IF THE FUNDS WERE AVAILABLE TO HER -- IF I'M CONVINCED THAT
3 THEY COULD BE AVAILABLE TO HER IN CHINA AND THERE IS NO
4 EXTRADITION TREATY AND THAT'S WHERE SHE WOULD FLEE TO, THAT
5 PRESENTS AN ISSUE DIFFERENT FROM DR. LYNCH'S, AND THAT AS WELL
6 HAS TO BE ADDRESSED, TO THE EXTENT IT CAN BE.

7 MR. PETERS: BUT, YOUR HONOR, I -- NO, IT'S HELPFUL
8 TO HEAR THE COURT'S CONCERNS, BECAUSE IF SHE HAS 24 HOUR, 7 DAY
9 A WEEK GUARD, AND AN ANKLE BRACELET ON, AND BAIL CONDITIONS AND
10 MONEY POSTED, SHE WOULD HAVE TO -- AND NO PASSPORT, SHE WOULD
11 HAVE TO SHAKE THE GUARD, CUT OFF THE ANKLE BRACELET, AND
12 SOMEHOW GET HERSELF TO CHINA.

13 THE COURT: WELL, PUT IT ALL TOGETHER IN A WAY THAT
14 YOU THINK IS BEST.

15 MR. PETERS: OKAY.

16 THE COURT: I'VE IDENTIFIED TWO SETS OF CONCERNS THAT
17 I HAVE.

18 MR. PETERS: DO YOU HAVE OTHER CONCERNS THAT WE NEED
19 TO ADDRESS? I APPRECIATE YOUR HONOR TELLING US YOUR CONCERNS,
20 BECAUSE WE HAVE TO ADDRESS THEM.

21 THE COURT: OKAY.

22 MR. PETERS: ARE THERE OTHERS? OR IS THAT --

23 THE COURT: I MEAN, MAYBE THERE SHOULD BE SOME
24 EXPLANATION OF WHY SHE'S DELETING ALL THIS INFORMATION.

25 MR. PETERS: WELL, I MEAN --

1 THE COURT: WHY SHE DELETES ALL THIS INFORMATION.
2 BECAUSE -- AND WHY SHE IS SEEKING INFORMATION ABOUT
3 EXTRADITION.

4 I MEAN, THOSE ARE THINGS THAT ARE TROUBLESOME.

5 MR. PETERS: RIGHT. YOU'VE SHARED THOSE. WE'VE
6 DISCUSSED THOSE, YEAH.

7 THE COURT: OKAY.

8 MR. FOSTER: THANK YOU, YOUR HONOR.

9 THE COURT: OKAY.

10 MR. PETERS: WE'LL SEE YOU NEXT WEEK.

11 THE COURT: I GUESS SO.

12 MR. PETERS: THANK YOU VERY MUCH, YOUR HONOR. HAVE A
13 GOOD WEEKEND.

14 THE COURT: THANK YOU.

15 THE CLERK: THAT CONCLUDES THE CALENDAR. THANK YOU.

16 (THE PROCEEDINGS WERE CONCLUDED AT 12:04 P.M.)
17
18
19
20
21
22
23
24
25

存案 Filed

公司編號 CR No.
3281340公司註冊處
Companies Registry法團成立表格
(股份有限公司)
Incorporation Form
(Company Limited by Shares)表格
Form**NNC1****1 建議採用的公司名稱 Proposed Company Name**建議採用的公司英文名稱 **Proposed English Company Name**

Makebelieve Asia Consultancy Limited

建議採用的公司中文名稱 **Proposed Chinese Company Name**

香港美克國際諮詢服務有限公司

2 公司類別 Type of Company

請在適用的空格內加上 ✓ 號 Please tick the relevant box



私人 Private



公眾 Public

3 公司在香港的註冊辦事處的建議地址**Proposed Address of the Company's Registered Office in Hong Kong**

UNIT B, 13/F

SHING LEE COMMERCIAL BUILDING

No.8 WING KUT STREET CENTRAL

Hong Kong

(本處不接納「轉交」地址或郵政信箱號碼 'Care of' addresses or post office box numbers are not acceptable)

4 電郵地址 Email Address本處專用 **For Official Use**

Document Ref. No.:

Submission Date:22/05/2023

Resubmission Date:



表格
Form **NNC1**

5 公司組成時的股本及最初的股份持有情況
Share Capital and Initial Shareholdings on the Company's Formation

股份的類別 (如普通股／優先股等) Class of Shares (e.g. Ordinary / Preference etc.)	建議發行的 股份總數 Total Number of Shares Proposed to be Issued	貨幣 Currency	創辦成員認購的 股本總額 Total Amount of Share Capital to be Subscribed by Founder Members (a)	建議發行的股份的 將要繳付或視為 已繳付的總款額 Total Amount to be Paid Up or to be Regarded as Paid Up on the Shares Proposed to be Issued (b)	建議發行的股份的 尚未繳付或視為 尚未繳付的總款額 Total Amount to Remain Unpaid or to be Regarded as Unpaid on the Shares Proposed to be Issued (a) – (b)
Ordinary	10,000	HKD	10,000	10,000	0
總值 Total	10,000	HKD	10,000	10,000	0

5A 股份所附帶的權利的詳情 Particulars of Rights Attached to Shares
(只適用於發行超過一類股份的公司 Only applicable to company issuing more than 1 class of shares)

股份的類別 (如普通股／ 優先股等) Class of Shares (e.g. Ordinary / Preference etc.)	附帶的權利的詳情 (包括表決權；在分派股息時參與該項分派的權利； 在分派股本時參與該項分派的權利；該類別股份是否屬可贖回股份等) Particulars of Rights Attached (Including voting rights; rights to participate in a distribution as respects dividends; rights to participate in a distribution as respects capital; whether the shares are redeemable etc.)

表格
Form

NNC1

6 創辦成員 Founder Members

1 中文姓名／名稱
Name in Chinese

朱繹穎

英文姓名／名稱
Name in English

Z Y

地址
Address

國家／地區
Country／Region

China

認購的股本
Share Capital to be
Subscribed

股份的類別 (如普通股／優先股等) Class of Shares (e.g. Ordinary／Preference etc.)	建議向該成員發行的股份數目 Shares Proposed to be Issued to the Member		
	總數 Total Number	貨幣 Currency	總款額 Total Amount
Ordinary	10,000	HKD	10,000
總值 Total	10,000	HKD	10,000

2 中文姓名／名稱
Name in Chinese

英文姓名／名稱
Name in English

地址
Address

國家／地區
Country／Region

認購的股本
Share Capital to be
Subscribed

股份的類別 (如普通股／優先股等) Class of Shares (e.g. Ordinary／Preference etc.)	建議向該成員發行的股份數目 Shares Proposed to be Issued to the Member		
	總數 Total Number	貨幣 Currency	總款額 Total Amount
總值 Total			

表格
Form **NNC1**

7 首任公司秘書 **First Company Secretary**

A. 公司秘書(自然人) **Company Secretary (Natural Person)**

1 中文姓名
Name in Chinese

英文姓名 Name In English

姓氏
Surname

名字
Other Names

前用姓名
Previous Names

別名
Alias

中文 Chinese

英文 English

香港通訊地址
Hong Kong
Correspondence
Address

Hong Kong

(本處不接納郵政信箱號碼 Post office box numbers are not acceptable)

電郵地址
Email Address

(須在
PI-NNC1 頁
填報完整
身分識別號碼
Provide full
identification
number in
PI-NNC1 sheet)

身分識別 Identification

(a) 香港身分證部分號碼
Partial Number of Hong Kong Identity Card

***(*)

(b) 護照
Passport

簽發國家／地區 Issuing Country／Region

部分號碼 Partial Number

B. 公司秘書(法人團體) **Company Secretary (Body Corporate)**

1 中文名稱
Name in Chinese

創易會計事務有限公司

英文名稱
Name in English

ECB Accounting Services Limited

香港地址
Hong Kong
Address

UNIT B, 13/F

SHING LEE COMMERCIAL BUILDING

No.8 WING KUT STREET CENTRAL

Hong Kong

(本處不接納「轉交」地址或郵政信箱號碼 'Care of' addresses or post office box numbers are not acceptable)

電郵地址
Email Address

公司編號 Company Number



PRESS RELEASE

Fugitive Leonard Francis Back in San Diego; Appears in Federal Court

Thursday, January 4, 2024

For Immediate Release

U.S. Attorney's Office, Southern District
of California

Kelly.Thornton@usdoj.gov

NEWS RELEASE SUMMARY – January 4, 2024

SAN DIEGO – Leonard Glenn Francis, the infamous fugitive who presided over a massive decade-long conspiracy involving scores of U.S. Navy officials, tens of millions of dollars in fraud and millions of dollars in bribes and gifts, appeared in federal court today for the first time since he cut off his electronic monitoring bracelet and absconded from house arrest in San Diego in September 2022.

At the hearing, the government asked U.S. District Judge Janis L. Sammartino to set a new sentencing date immediately to avoid delays, but the judge postponed a decision based on a request by Francis' legal team to withdraw from the case in the aftermath of his disappearance. The judge set a status hearing for February 8, 2024, at 9 a.m.

Francis, who fled the United States before he could be sentenced, was returned to the United States from Venezuela as part of a prisoner swap on December 20, 2023. From Venezuela, he arrived in the Southern District of Florida and appeared in federal court the next day in Miami, where he was ordered removed to the Southern District of California. Francis arrived in San Diego on January 3.

Francis, the owner and chief executive of Glenn Defense Marine Asia, which provided services to U.S. Navy ships in ports in the Asia-Pacific region, pleaded guilty to bribery and fraud charges in 2015. As a result of the federal investigation, more than 30 U.S. Navy officials and associates pleaded guilty.

“Leonard Francis is no longer on the run. He is on the hook,” said U.S. Attorney Tara K. McGrath. “Mr. Francis never should have fled the United States while he was waiting to be sentenced. In fact, he was ordered by a federal judge not to do so. Now that he is back in San Diego, Mr. Francis will be held fully accountable for his crimes.”

DEFENDANTS

Case Number 13-CR- 4287

Leonard Glenn Francis

Age: 59

Singapore

SUMMARY OF CHARGES

Conspiracy to Commit Bribery, in violation of 18 U.S.C. § 371. Maximum penalty five years in prison, \$250,000 fine or twice the gross pecuniary gain or loss from the offense, whichever is greater;

Bribery, in violation of 18 U.S.C. § 201. Maximum 15 years in prison, \$250,000 fine or twice the gross pecuniary gain or loss from the offense, whichever is greater. Mandatory restitution.

Conspiracy to Defraud the United States, in violation of in violation of 18 U.S.C. sec. 371. Maximum penalty five years in prison \$250,000 fine or twice the gross pecuniary gain or loss from the offense, whichever is greater. Mandatory restitution.

INVESTIGATING AGENCIES

Defense Criminal Investigative Service

Naval Criminal Investigative Service

Defense Contract Audit Agency

Contact

Media Relations Director Kelly Thornton (619) 546-9726 or Kelly.Thornton@usdoj.gov

Updated January 4, 2024

Topics

FINANCIAL FRAUD

PUBLIC CORRUPTION

Component

[USAO - California, Southern](#)

Press Release Number: CAS24-0104-Francis

Related Content

PRESS RELEASE

President of UMI Learning Center Sentenced to 27 Months in Prison, Ordered to Pay \$3.7 Million back in Stolen Childcare Benefits

SAN DIEGO – Mohamed Muriidi Mohamed was sentenced in federal court today to 27 months in prison for participating in a childcare-benefits fraud scheme that bilked a California welfare and...

August 21, 2024

PRESS RELEASE

U.S. Attorney's Office, FBI Recover Millions for Elderly Fraud Victims

SAN DIEGO – Because of a new and aggressive effort to thwart criminals who target seniors, the U.S. Attorney's Office and the San Diego FBI have recovered more than \$3...

June 20, 2024

PRESS RELEASE

Customs and Border Protection Officer Convicted by Federal Jury of Receiving Bribes, Allowing Drug-Laden Vehicles to Enter the U.S.

SAN DIEGO – Former U.S. Customs and Border Protection Officer Leonard Darnell George was convicted by a federal jury late Monday, June 10, of accepting bribes to allow vehicles containing...

June 12, 2024



Southern District of California

Main Office:

Federal Office Building

880 Front Street, Room 6293

San Diego, California 92101-8807

To report broken links or technical issues

ONLY, email [Webmaster](#)

To report a crime please see the Action Center.



Telephone: (619) 557-5610

Toll Free (800) 544-1106

Fax: (619) 546-0720

TTY: (619) 557-3450